

Non-Basmati Aromatic Rice Grading and Marking Rules, 2024

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Non-Basmati Aromatic Rice Grading and Marking Rules, 2024

UNION OF INDIA

India

Non-Basmati Aromatic Rice Grading and Marking Rules, 2024

Rule G-S-R-82-E of 2024

Published on 2 February 2024

Not commenced

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Whereas, the draft of the Non-Basmati Aromatic Rice Grading and Marking Rules, 2023, was published under section 3 of the Agricultural Produce (Grading and Marking) Act, 1937 (1 of 1937) in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i), vide number G.S.R. 742 (E), dated the 16th October, 2023, inviting objections and suggestions from all persons likely to be affected thereby within forty-five days from the date on which copies of the said notification published in the Gazette of India, were made available to the public;

And whereas, the copies of the said notification were made available to the public on 16th October, 2023. And whereas, the objections and suggestions received from the stakeholders in respect of the said draft rules have been duly considered;

Now, therefore, in exercise of the powers conferred by sub-section (1) of section 3 of the Agricultural Produce (Grading and Marking) Act, 1937 (1 of 1937), the Central Government hereby makes the following rules, namely:-

1.

Short title, application and commencement.

(1) These rules may be called the Non-Basmati Aromatic Rice Grading and Marking Rules, 2024.

(2) They shall apply to following Non-Basmati aromatic varieties of rice intended for direct human consumption, namely:-

- (i) Gobindabhog;
- (ii) Tulaipanji;
- (iii) Kataribhog;
- (iv) Kalonunia; and
- (v) Radhunipagal.

(3) They shall come into force on the date of their final publication in the Official Gazette of India.

2.

Definitions.

(1) In these rules, unless the context otherwise requires,-

(a)

"Act"

means the Agricultural Produce (Grading and Marking) Act, 1937 (1 of 1937);

(b)

"Agricultural Marketing Adviser"

means the Agricultural Marketing Adviser to the Government of India;

(c)

"authorised packer"

means a person or a body of persons who has been granted a certificate of authorisation to grade and mark the rice in accordance with the grade standards and procedure provided under these rules and the General Grading and Marking Rules, 1988;

(d)

"certificate of authorisation"

means a certificate issued under the provisions of the General Grading and Marking Rules, 1988 authorising a person or a body of persons to grade and mark rice with the grade designation mark;

(e)

"General Grading and Marking Rules"

means the General Grading and Marking Rules, 1988, made under section 3 of the Agricultural Produce (Grading and Marking) Act, 1937 (1 of 1937);

(f)

"grade designation mark"

means

"AGMARK Insignia"

referred to in rule 3;

(g)

"Legal Metrology (Packaged Commodities) Rules"

means the Legal Metrology (Packaged Commodities) Rules, 2011, made under the Legal Metrology Act, 2009 (1 of 2010); and

(h)

"Schedules"

means the Schedules appended to these rules.

(2) The words and expressions used and not defined in these rules but defined in the Agricultural Produce (Grading and Marking) Act, 1937 or the General Grading and Marking Rules, 1988, shall have the same meaning as are assigned to them under the said Act or the rules.

3.

Grade designation mark.

The grade designation mark shall be consisting of the design of "AGMARK Insignia", as set out in Schedule-I, incorporating the certificate of authorisation number, the word "AGMARK", the name of commodity and its grade.

4.

Grade designations.

The grade designations to indicate the quality of rice including the criteria for grade designation shall be as set out in Schedule-II to VI.

5.

Quality.

For the purpose of these rules, the quality of rice shall be as provided in Schedule-II to VI.

6.

Method of packing.

(1) The rice shall be packed in suitable packaging material in accordance with the provisions of the Food Safety and Standards (Packaging) Regulations, 2018, the Food Safety and Standards (Labelling and Display) Regulations, 2020 and Legal Metrology (Packaged Commodities) Rules, 2011.

(2) The graded material of small pack sizes of the same lot or batch and grade may be packed in a master container with complete details thereon along with the grade designation mark.

(3) Each package shall contain rice of the same type and of the same grade designation.

(4) Each package shall be properly and securely closed and sealed so as to disallow spilling.

7.

Method of marking.

(1) The grade designation mark shall be securely affixed to or printed on each package in the manner approved by the Agricultural Marketing Adviser or an officer authorised by him under rule 11 of the General Grading and Marking Rules.

(2) In addition to the grade designation mark, following particulars shall be clearly and indelibly marked on each package, namely:-

(a) name of the commodity;

(b) grade;

(c) variety or trade name(optional);

(d) lot or batch number;

(e) date of packing;

(f) crop year (optional);

(g) net weight;

(h) name and address of the authorised packer;

(i) maximum retail price (inclusive of all taxes);

(j) Best Before _____

____Month

____Year; and

(k) any other particulars as provided under the Legal Metrology (Packaged Commodities) Rules, 2011 or specified under the Food Safety and Standards (Packaging) Regulations, 2018 and the Food Safety and Standards (Labelling and Display) Regulations, 2020 or any notification issued under any other law for the time being in force or any instructions issued under the provisions of the Act, provided that right quality of ink is used for marking on packages.

(3) The authorised packer may after obtaining prior approval of the Agricultural Marketing Adviser or an officer authorised by him under rule 11 of the General Grading and Marking Rules, mark his private trade mark or trade brand on the graded packages provided the same do not indicate quality other than that indicated by the grade designation mark affixed to the graded packages in accordance with these rules.

8.

The special conditions of certificate of authorization.

In addition to the conditions specified in sub- rule (8) of rule 3 of the General Grading and Marking Rules, every authorised packer shall comply the conditions specified under these rules.

(1) The authorised packer shall either set up his own laboratory as per norms issued under rule 8 of the General Grading and Marking Rules, or have access to an approved State grading laboratory or cooperative or association laboratory or a private commercial laboratory manned by a qualified chemist approved by the Agricultural Marketing Adviser under rule 9 of the General Grading and Marking Rules, for testing the quality of rice.

(2) The premises of the authorised packer shall be maintained in hygienic and sanitary conditions with proper ventilations and well lighted arrangement and the personnel engaged in these operations shall be in sound health and

free from any infectious, contagious or communicable diseases.

(3) The premises of the authorised packer shall have adequate storage facilities with pucca floor and free from dampness, any kind of cracks and crevices, rodent and insect infestation.

(4) The authorised packer and the approved chemist shall observe all instructions regarding testing, grading, packing, marking, sealing and maintenance of records which may be issued by the Agricultural Marketing Adviser or an officer authorised by him in this behalf in accordance with the General Grading and Marking Rules, from time to time.

9.

Other requirements.

(1) For domestic trade, it shall comply with the restrictions in regard to residual levels of metal contaminants, pesticides residues, microbial requirements, crop contaminants, naturally occurring toxic substances and other food safety requirements as specified under the Food Safety and Standards (Contaminants, Toxins and Residues) Regulations, 2011, the Food Safety and Standards (Food Product Standards and Food Additives) Regulations, 2011 and other regulations made for domestic trade under the Food Safety and Standards Act, 2006 (34 of 2006).

(2) For export trade, it shall comply with the residual limits of heavy metals, pesticides and other food safety requirements as laid down by the Codex Alimentarius Commission or importing countries requirement for exports.

(3) (i) The condition of the rice shall be so as to enable it to -

(a) withstand transport and handling; and

(b) arrive in satisfactory condition at the place of destination.

(ii) Rice shall be stored in a dry and hygienic place at normal room temperature.

(4) The confirmation for rice variety shall be done by Polymerase Chain Reaction test, if required.

Schedule-II

(See rules 4 and 5)

Grade designation and quality of raw milled Gobindabhog rice (short grain)

Gobindabhog rice shall-

(a) have short grains which are white to creamy-white in colour;

(b) have uniform size, shape and colour;

(c) possess marked degrees of natural fragrance, characteristic of the variety both in raw and cooked forms;

(d) be free from artificial colouring, polishing agents, artificial fragrances and any other chemicals;

(e) be free from filth (impurities of animal origin) such as rodent hair and excreta, live and dead insects, insect fragments, moulds and fungus;

(f) be free from any musty obnoxious odour;

Schedule-III

(See rules 4 and 5)

Grade designation and quality of parboiled milled Tulaipanji rice (medium grain)

Tulaipanji rice shall-

(a) have medium sized grains which are white to creamy-white in colour;

(b) have uniform size, shape and colour;

(c) possess marked degrees of natural fragrance, characteristic of the variety both in parboiled and cooked forms;

(d) be free from artificial colouring, polishing agents, artificial fragrances and any other chemicals;

(e) be free from filth (impurities of animal origin) such as rodent hair and excreta, live and dead insects, insect fragments, moulds and fungus;

(f) be free from any musty obnoxious odour;

(See rules 4 and 5)

Grade designation and quality of parboiled milled Kataribhog rice (medium grain)

Kataribhog rice shall-

(a) have medium sized grains which are white to creamy-white in colour;

(b) have uniform size, shape and colour;

(c) possess marked degrees of natural fragrance, characteristic of the variety both in parboiled and cooked forms;

(d) be free from artificial colouring, polishing agents, artificial fragrances and any other chemicals;

(e) be free from filth (impurities of animal origin) such as rodent hair and excreta, live and dead insects, insect fragments, moulds and fungus;

(f) be free from any musty obnoxious odour;

Schedule-V

(See rules 4 and 5)

Grade designation and quality of raw milled Kalonunia rice (medium grain)

Kalonunia rice shall-

(a) have medium sized grains which are white to creamy-white in colour;

(b) have uniform size, shape and colour;

(c) possess marked degrees of natural fragrance, characteristic of the variety both in raw and cooked forms;

(d) be free from artificial colouring, polishing agents, artificial fragrances and any other chemicals;

(e) be free from filth (impurities of animal origin) such as rodent hair and excreta, live and dead insects, insect fragments, moulds and fungus;

(f) be free from any musty obnoxious odour;

Schedule-VI

(See rules 4 and 5)

Grade designation and quality of raw milled Radhunipagal rice (short grain)

Radhunipagal rice shall-

(a) have short grains which are white to creamy-white in colour;

(b) have uniform size, shape and colour;

(c) possess marked degrees of natural fragrance, characteristic of the variety both in raw and cooked forms;

(d) be free from artificial colouring, polishing agents, artificial fragrances and any other chemicals;

(e) be free from filth (impurities of animal origin) such as rodent hair and excreta, live and dead insects, insect fragments, moulds and fungus;

(f) be free from any musty obnoxious odour;

Explanation for the purpose of these Tables:

(i) Foreign matter includes inorganic and organic matter. The inorganic matter shall include sand, gravel, dirt, pebbles, stones, glass and metallic pieces, lumps of earth, clay and mud. Organic matter shall include husk, chaff, straw, weed seeds, fragments of bran and other inedible grains.

(ii) Damaged grains are kernels or pieces of kernels that are sprouted or internally damaged as a result of heat, moisture, weather or microbes.

(iii) Discoloured grains are kernels or pieces of kernels that have changed the natural color as a result of deteriorative changes superficially.

(iv) Chalky grains are kernels or pieces of kernels of which at least half the portion is opaque, milky white in colour and brittle in nature.

(v) Broken are pieces of sound kernels that are less than three-fourth of the size of the full kernels.

(vi) Fragments are the pieces of kernels that are less than one-eighth of the size of the full kernels.

(vii) Admixture means the presence of a variety of the same grain other than the variety in consideration.

(viii) Weevilled grains are grain kernels that are partially or wholly bored by insects injurious to grain but do not include germ-eaten grains and egg-spotted grains.

(ix) Length- Breadth ratio means the ratio of the length of a grain to its breadth.

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